

		In light of the handwritten notes, which Prime produced as notes from an interview with Mr. Hernandez, the Court cannot conclude that Prime has a reasonable possibility of prevailing on SmartStop's trade secret cause of action based on the argument that Prime has never received or solicited any trade secret information from Mr. Hernandez. Thus, the Motion for Undertaking is DENIED. <i>Moving party to give notice.</i>
105	Simmons vs. Brower Law Group, APC, 26-01548869	Defendant Brower Law Group, APC ("Defendant") filed four discovery motions wherein Defendant moves to Compel Plaintiff Caroline Simmons to provide further responses to the following discovery: (1) Requests for Production, Set One plus \$2,700 in sanctions, (2) Requests for Admission, Set One plus \$2,670 in sanctions, (3) Form Interrogatories, Set One plus \$2,430 in sanctions, and (4) Special Interrogatories Set One plus \$2,970 in sanctions. Plaintiff/Cross-Defendant Caroline Simmons ("Plaintiff") opposes the motion. The Motions are DENIED as untimely. Motions to compel further responses to interrogatories must be noticed "within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." (Code Civ. Proc., § 2030.300, subd. (c).) However, the "service of unverified responses and objections" does not "activate[]" the 45-day deadline. (<i>Golf & Tennis Pro Shop, Inc. v. Superior Court</i> (2022) 84 Cal.App.5th 127, 136 [holding that 45-day time period to file a motion to compel further responses to interrogatories does not begin to run upon service of combination of unverified factual responses and objections, where the motion challenges only the objections].) "[D]iscovery deadlines are mandatory and we have treated them as jurisdictional." (<i>Weinstein v. Blumberg</i> (2018) 25 Cal.App.5th 316, 322 [citing <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410].) "Where a party does

		not obtain trial court relief from the statutory deadline, 'failure to move for further answers within the statutory time forecloses further relief.'" (<i>Id.</i> [citing <i>O'Brien v. Superior Court</i> (1965) 233 Cal.App.2d 388, 391].) Here, the Form Interrogatories and Requests for Admission at issue were served on 08/14/2025. For these discovery sets, Plaintiff provided verified responses that contained both facts and objections on 09/12/2025. Thus, the last day for Defendant to move to compel further was Monday, 10/27/2025 (45 days after 09/12/2025). These motions were filed and served on 03/04/2026. The Special Interrogatories and Requests for Production at issue were served on 09/19/2025. For these discovery sets, Plaintiff provided verified responses that contained both facts and objections on 10/21/2025. Thus, the last day for Defendant to move to compel further was Friday, 12/05/2025 (45 days after 10/21/2026). These motions were filed and served on 03/04/2026. This case is different than <i>Golf & Tennis Pro Shop, Inc. v. Superior Court</i> (2022) 84 Cal.App.5th 127 because Plaintiff provided verified factual responses and objections. Accordingly, the deadline was activated when the discovery responses were served on 09/12/2025 and 10/21/2025. The parties did not agree in writing to extend the deadlines to file the motions to compel further. Given the above, the Motions are DENIED. The Case Management Conference is continued to 10/8/2026 at 1:30 p.m. <i>Plaintiff to give notice.</i>
106	Loera vs. United Parcel Services Inc, 24-01420618	Defendant Maurice Maalouli moves to compel Plaintiff Natalie Victoria Loera to serve further responses to Special Interrogatories, Set Three, Nos. 105 and 106 and Request for Production, Set Three No., 80 and for monetary sanctions. This is a personal injury action arising out of a motor vehicle accident. The Special Interrogatories at issue are as follows: